

TENTATIVE RULINGS

FOR: September 09, 2026

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PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Gavin Charles Scholle

26PR000038

AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is neither proof of service on Diane Faulk nor proof of publication on file. If code-compliant proof of each is filed prior to the hearing, the petition will

be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

The Court construes Petitioner’s verification of the Petition, requesting waiver of bond, as his consent to waiver.

If either proof (of service or publication) has not been made, the Court will be forced to DENY the Petition without prejudice. Service and publication are required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C); see also *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“[t]he court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].) Therefore, the Petition may not be heard unless and until an affidavit of publication, and proof of service of notice are on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made and/or no proof of service of notice, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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Estate of Manuel D Gomes

26PR000178

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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PETITION FOR ORDER AUTHORIZING COMPROMISE OF MINOR'S CLAIM (Pr.C. 3500 et seq.)

TENTATIVE RULING: The Petitioner is GRANTED. The Court sets the matter for Status Conference, to confirm purchase of annuities described in the petition, on November 04, 2026, at 8:30 a.m., in Dept. A.

The Court orders that Petitioner file one or more declaration(s) from Petitioner or Petitioner's counsel of record, under penalty of perjury, attesting to the truth of the following facts: (1) that declarant has reviewed the original annuity contract, (2) that the substantive terms of the annuity contract are the same as those set forth in the Petition, and (3) that a true and correct copy of the annuity contract is attached to the declaration. If such proof is filed at least five Court days prior to the hearing, the hearing may be vacated, and no appearance required.

If Petitioner fails to timely comply with the foregoing, the Court will require personal appearance of Petitioner and counsel, at the November 4, 2026, hearing, for purposes of explaining the failure to comply. The Court may issue an Order to Show Cause re: Monetary Sanctions or make other orders as may appear necessary.

Finally, the Court orders that attorney's fees and costs allowed in this matter shall remain in Petitioner's attorney's client trust account until any annuity described in the Petition has been purchased and proof conforming to the Court's requirements (set forth above) has been filed. This order applies only to fees and costs allocated or attributable to a minor's settlement; fees and costs incurred which pertain to settlements of non-minors are not implicated by this order.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Manuel Torres et al v. Jose Gomez et al

24CV001428

MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING: The motion is GRANTED. The Clerk is ordered to set aside the Default and Default Judgment entered against Defendant Jose Gomez. Mr. Gomez is granted 10 calendar days' leave, from Notice of Entry of Order, to serve and file an Answer to the Complaint, in substantially the same form as the [Proposed] Answer submitted to the Court on August 28, 2026. The Clerk is to send notice of Entry of Order to the parties. The matter is set for Case Management Conference on January 20, 2027, at 8:30 a.m. in Dept. A.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Jose Gomez moves, pursuant to Code of Civil Procedure sections 473.5 and 473(d), for an order setting aside and vacating the default judgment entered on June 10, 2025, in this action.

Discretionary relief based upon a lack of actual notice under section 473.5 empowers a court to grant relief from a default judgment where a valid service of summons has not resulted in actual notice to a party in time to defend the action. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077–1078; see also § 473.5 subd. (a).) A party seeking relief under section 473.5 must provide an affidavit showing under oath that his or her lack of actual notice in time to defend was not caused by inexcusable neglect or avoidance of service. (See *Tunis v. Barrow*, *supra*, 184 Cal.App.3d at pp. 1077–1078, 229 Cal.Rptr. 389; see also § 473.5 subd. (b); *Anastos v. Lee*, 118 Cal. App. 4th 1314, 1319, 13 Cal.Rptr. 3d 716, 718 (2004).)

The parties have submitted competing declarations on both the issue of whether Mr. Gomez was actually served and whether he had actual notice of the litigation.

In this context, the Court considers whether relief is appropriate pursuant to Code of Civil Procedure section 473 subdivision (b), based on “mistake, inadvertence or excusable neglect.” When a defendant promptly seeks relief and there is no showing of prejudice to the plaintiff, “very slight evidence” is all that is required to justify setting aside the default. (See *Purdum v. Holmes* (2010) 187 Cal.App.4th 916, 922.) The policy favoring a trial on the merits should prevail unless inexcusable neglect is clear. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419-1420 (*New Albertsons*).)

Mr. Gomez asserts that he never received any documents from Rogelio Santos, who served as a delivery driver when in need of assistance. (Gomez Declaration, pg. 2). Mr. Gomez further explains that he changed addresses due to mail theft. (*Id.*). Mr. Gomez asserts he first learned of the lawsuit and default judgment on July 3, 2026, when served with an Order for Examination. (Gomez Declaration, pg. 2).

While Mr. Gomez’ evidence that his neglect was excusable is disputed, pursuant to the holding in *Purdum v. Holmes*, *supra*, 187 Cal.App.4th 916, the Court finds that it is sufficient to support the motion to set aside the Entry of Default in light of the strong public policy in favor of trial on the merits. (*New Albertsons* , *supra* , 168 Cal.App.4th at 1419-1420.)

Based on the foregoing, the Motion is GRANTED.

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MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSIONS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves, pursuant to Code of Civil Procedure sections 2023 and 2033.280, for an order that the genuineness of any documents and the truth of all specified matters in Plaintiff's Requests for Admissions, Set. No. 1 be deemed admitted. The Motion is made on the grounds that Defendant failed to serve responses to the RFAs.

"If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." (§ 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Veronika Rakhlina, at ¶¶ 2, 4.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A. Prior to the next hearing, moving party shall file and serve an amended notice which includes proper notice of the Court's tentative ruling system as required by Local Rule 2.9.

The Order to Show Cause re: Dismissal is continued to December 15, 2026, at 8:30 a.m. in Dept. A.

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DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Defendants are granted 10 days’ leave from notice of entry of order to answer the FAC (defined below). (See Rules of Court, rule 3.1320(g).) Plaintiff is directed to provide notice of entry of order.

Defendants Estate of Jack Malan and Chris Malan, individually, as successor in interest to Jack Malan, deceased, and as successor Trustee of the Malan Family Trust (“Defendants”) demur, pursuant to Code of Civil Procedure section 430.10, subdivision (e),¹ to the First Amended Complaint (“FAC”) filed by Plaintiff Angelica Hernandez (“Plaintiff”). Defendants so move on the ground that the FAC fails to state facts sufficient to constitute a cause of action because the entire action is barred by the applicable statute of limitations.

As a preliminary matter, the Court’s reference to FAC includes both (1) the FAC filed on March 17, 2026, naming defendant “Estate of Jack Malan, by and through its Personal Representative” and DOES 1-100, and (2) the Amendment filed April 30, 2026, substituting DOE 1 as “Chris Malan, individually and as Successor in Interest to Jack Malan, deceased, and as Successor Trustee of the Malan Family Trust.” The Court notes that Plaintiff did not obtain leave of Court for her DOE amendment to the FAC. That said, Plaintiff raised her DOE amendment in opposition to Defendants’ previous motion to quash, and Defendants implicitly consented to its filing by failing to file a Reply. (See 5/12/26 Minute Order.) As such, the Court elects to allow the April 30, 2026 DOE Amendment to remain in the Court file. Plaintiff’s counsel is reminded that Plaintiff must obtain leave of Court before filing any further amendments to her pleadings. (See § 473.)

The FAC alleges two causes of action: one for Motor Vehicle Negligence, and another for General Negligence. The action arises from a motor vehicle accident that is alleged to have occurred on or about October 20, 2023. (FAC ¶ 11.) The parties do not dispute that the applicable statute of limitations for personal injury claims is two years. (See § 335.1.)

Defendants appear to concede that, based on the relation back doctrine, the relevant date for statute of limitations purposes is the filing date of the original complaint on October 21, 2025. Defendants argue that the complaint and all superseding amendments are time-barred, as the last day the action could have been filed was October 20, 2025, two years after the motor vehicle accident, and one day before the complaint was actually filed.

In Opposition, Plaintiff points out, among other things, that the FAC alleges decedent “Jack Malan had passed away prior to the commencement of this action.” (FAC, ¶ 7.) Plaintiff argues that this allegation is sufficient to establish that Jack Malan died, at the very latest, on October 20, 2025 (the day before the complaint was filed). Thus, Plaintiff argues, Jack Malan died at the very latest on the last day the action could have been filed under section 335.1. In these circumstances, Plaintiff argues that Probate Code section 551 extends the statute of

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

limitations one year because the limitations period had not yet expired at the time of decedent's death.

“Notwithstanding Section 366.2 of the Code of Civil Procedure, if the limitations period otherwise applicable to the action has not expired at the time of the decedent's death, an action under this chapter may be commenced within one year after the expiration of the limitations period otherwise applicable.” (Prob. Code, § 551.) Section 366.2 provides a similar, but slightly different, provision: “If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.” (§ 366.2.)²

The Court agrees that Probate Code section 551 applies and extends the statute of limitations. Here, the only allegation relating to Jack Malan's date of death is in Paragraph 7. Taken as true, Paragraph 7 establishes that Jack Malan passed away, at the latest, on October 20, 2025. It follows that section 335.1's two-year limitations period (under which Plaintiff had until October 20, 2025 to file an action) had not expired at the time of the decedent's death. Thus, under Probate Code 551, the action “may be commenced within one year after the expiration of the limitations period otherwise applicable,” or October 21, 2026. Based on the foregoing, the complaint, filed on October 21, 2025, is timely.

Defendants' attempt in Reply to refute Probate Code section 551's applicability is unavailing.

Based on the foregoing, the demurrer is OVERRULED. This ruling renders it unnecessary for the Court to consider Defendant's additional arguments in opposition to the demurrer. (See Opp. 7:12-10:7.)

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American Canyon I. LLC v. City of American Canyon et al

26CV001286

DEFENDANT CITY OF AMERICAN CANYON'S DEMURRER TO COMPLAINT OF
PLAINTIFF AMERICAN CANYON 1, LLC

TENTATIVE RULING: The demurrer is CONTINUED to September 11, 2026, at 1:30 p.m. in Dept. A. If that date and time do not work for the parties, they shall request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

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² Plaintiff contends that section 366.2 does not apply because the present action is brought on an insured claim for which Probate Code 551 applies. (Opp., 6:3-5.) Defendants implicitly concede this by failing to address it in Reply.

In The Matter of Satoshi J Sakamoto

26CV001348

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Rodney Tyrone Smith

25PR000029

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There remains no petition for final distribution or status report on file. Executor is therefore required to appear prepared to discuss the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate.

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Conservatorship of Sofia Vanessa Munoz Castro

26PR000151

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to October 07, 2026, at 8:30 a.m. in Dept. B to permit Petitioner to address the following deficiencies:

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Red Target, LLC dab SCJ Commercial Financials Services v. Kiersten Firquain

23CV000301

PLAINTIFF’S MOTION TO SET ASIDE JULY 21, 2026, HEARING PURSUANT TO CODE OF CIVIL PROCEDURE 473(b)

TENTATIVE RULING: The Motion, construed as one seeking to set aside prior orders, is GRANTED. The Court orders the Clerk to STRIKE the Court’s Minute Order of July 21, 2026, granting Defendant’ Kiersten Firquain’s Motion to Strike Plaintiff’s First Amended Complaint (Motion to Strike), and the Order After Hearing filed August 7, 2026. Plaintiff is granted leave to serve and file, no later than September 16, 2026, any opposition to the Motion to Strike. Ms. Firquain is granted leave to serve and file, no later than September 23, 2026, any

Reply in support of the Motion to Strike. The Motion to Strike is set for rehearing on September 30, 2026, at 8:30 a.m. in Dept. B.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Red Target, LLC (Red Target) moves, pursuant to Code of Civil Procedure section 473, subdivision (b), for an order setting aside “the court hearing” granting Defendant’s Motion to Strike on July 21, 2026. While somewhat ambiguous, the Court understands that, by the Motion, Red Target seeks relief from the Court’s Minute Order of July 21, 2026, granting Defendant’ Kiersten Firquain’s Motion to Strike Plaintiff’s First Amended Complaint. That order was then confirmed by Order After Hearing entered August 7, 2026. Based on the foregoing, the Court reasonably construes the instant Motion as seeking an order vacating both of the foregoing orders.

“The court may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect The application . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).) Public policy favors trying cases on the merits. Consistent with this policy, “any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Where an application for relief from dismissal under section 473 “is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect,” the Court is *compelled* to “vacate any . . . resulting . . . dismissal entered against his or her client, unless the court finds that the . . . dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Section 473, subd. (b).)

The Declaration of James Long, filed with the Reply, is sufficient support for the Motion. Based on the foregoing, the Motion is GRANTED.

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MOTION TO CONTINUE TRIAL AND TRIAL-RELATED DEADLINES

TENTATIVE RULING: The Court, having considered Defendant David Langon Construction, Inc.’s showing of good cause, the factors under Rules of Court, rule 3.1332(d), and the parties’ briefs, GRANTS the motion. The Trial Management Conference (TMC) is hereby continued to December 3, 2026 at 8:30 a.m. in Dept. B, and Trial is continued December 7, 2026, at 8:30 a.m. in Dept. B. The Court will sign the proposed order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Maudie Pollatrini v. Auberge Resorts, LLC et al

24CV001401

[1] DEFENDANT AUBERGE RESORTS, LLC’S MOTION TO COMPEL
ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Maudie Pollatrini to arbitrate her claims asserted against Auberge in this action on grounds “that Plaintiff entered into a binding and enforceable Arbitration Agreement . . .” (Notice of Motion at 2:7-9.)

A. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*)).

B. ANALYSIS

1. Auberge is Not a Party to the Subject Arbitration Agreement

“The scope of arbitration is a matter of agreement between the parties. A party can be compelled to arbitrate only those issues it has agreed to arbitrate.” (*Larkin v. Williams, Woolley, Cogswell, Nakazawa & Russell* (1999) 76 Cal.App.4th 227, 230 (*Larkin*).) “There is no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate. [Citation.] It follows that when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (*Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) “[W]ith limited exceptions only parties to an arbitration agreement can enforce it or be required to arbitrate.” (*Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 17.)

Auberge is not a party to the subject arbitration agreement (Arbitration Agreement). (See Notice of Lodgment of Exhibits at Exh. A.)

2. Equitable Estoppel Does Not Apply

Auberge argues that even as a non-party, it is entitled to enforce the Arbitration Agreement as against Plaintiff pursuant to the doctrine of equitable estoppel. (See Support Memo at 20:4, *et seq.*) “Under that doctrine . . . a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.” (Citations.) ‘By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.’ (Citation.) ‘The rule applies to prevent parties from trifling with their contractual obligations.’ (Citation.)” (*JSM Tuscany, LLC v. Super. Ct.* (2011) 193 Cal.App.4th 1222, 1237 (*JSM*).) The archetypal fact pattern to which the doctrine is applied involves a Plaintiff signatory suing a non-signatory defendant for breach of the contract containing the arbitration provision. (See, *e.g.*, *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 265.) “‘The plaintiff’s actual dependence on the underlying contract in making out the claim against the non-signatory defendant is . . . always the *sine qua non* of an appropriate situation for applying equitable estoppel.’” (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 229, quoting *In re Humana Inc. Managed Care Litigation* (11th Cir. 2002) 285 F.3d 971, emphasis omitted.)

Auberge fails to persuade the Court that Plaintiff’s claims against it are dependent on the Arbitration Agreement. To the contrary, the Court can find no suggestion in the allegations of the First Amended Complaint that Plaintiff’s claims arise out of the Arbitration Agreement or that Plaintiff relies on the agreement in stating any of her claims. Auberge fails to cite to authority supporting its argument that Plaintiff’s assertion of the same claims against co-defendant SRGA, who *has* agreed to arbitrate such claims, constitutes grounds for invoking the doctrine in Auberge’s favor. The Court is aware of no such authority.

Metalclad Corp. v. Ventana Environmental Organizational Partnership (2003) 109 Cal.App.4th 1705, (*Metaclad*), cited and discussed by Auberge, is distinguishable. In *Metaclad*, the plaintiff's claims against the signatory and non-signatory defendants all arose out of the contract containing the arbitration provision that the non-signatory defendants sought to enforce against the plaintiff. (See *id.* at p. 1717 ["Metalclad's breach of contract claim against Ventana could not be more 'intimately founded in and intertwined with' the underlying Geologic contract"].)

Jarboe v. Hanlees Auto Group (2020) 53 Cal.App.5th 539 (*Jarboe*) the other case cited by Auberge in its Support Memo, supports the Court's conclusion. "Jarboe's claims against the company, DKD of Davis, arising from his employment agreement will proceed to arbitration. The claims against other defendants for which there is no agreement to arbitrate will not. The mere fact that the claims against Leehan of Davis and the other defendants may be related to the claims DKD of Davis is arbitrating against Jarboe does not compel application of equitable estoppel." (*Id.* at p. 55.)

3. Auberge's Intended Beneficiary and Affiliated Entity Claims Were Not Timely Raised and Are Unsupported

Through the Reply, Auberge argues "even if Auberge was not a signatory to the Arbitration Agreement, it is allowed to enforce the agreement as an intended beneficiary." (*Id.* at 2:6-7.) Auberge also argues that it is an "affiliated entity" pursuant to the terms of the Arbitration Agreement.

Auberge did not, however, raise either argument in its moving papers. "[T]he court may disregard arguments or grounds for demurrer first raised in a reply brief." (Weil & Brown, et al., Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2020) §7:122.9, p. 7(I)-54; see also *Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 ["[t]he salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before"].)

The arguments go to Auberge's initial burden of demonstrating a binding agreement to arbitrate the controversy. The fact that Auberge asserted its equitable estoppel argument through the moving papers demonstrates that Auberge was, then, aware of the need to develop a legal theory by which it, as a non-signatory, could enforce the Arbitration Agreement against Plaintiff. As such, there is no apparent reason why Auberge could not have raised its "intended beneficiary" and/or "affiliated entity" arguments with the moving papers. Auberge provides no explanation for the failure to do so.

Even had Auberge raised the arguments through its moving papers, it has produced no evidence tending to support the central factual contentions; that it is either an "intended beneficiary" of the Arbitration Agreement, or an "affiliate" as that term is used in the Arbitration Agreement. Indeed, Auberge fails to produce evidence tending to show what its relationship was to SRGA Resort LP vis-à-vis Plaintiff's employment and/or the Arbitration Agreement.

C. CONCLUSION

Based on the foregoing, the Court finds that Auberge fails to carry its initial burden of making a prima facie showing of a written agreement to arbitrate Plaintiff's claims against Auberge. (See *Rosenthal, supra*, 14 Cal.4th at 413.) The Motion to compel Plaintiff to arbitrate those claims is, therefore, DENIED.

[2] DEFENDANT'S MOTION TO STAY PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is MOOT.

Defendant Auberge Resorts LLC (Auberge) moves, for an order staying the case pending resolution of the arbitration in the above-entitled action filed by Plaintiff Maudie Pollastrini. Because, concurrently herewith, the Court denies Auberge's Motion to Compel Arbitration, the instant motion is MOOT.

[3] DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Auberge is granted 10 calendar days leave to file an Answer to the First Amended Complaint. (See Cal. Rules of Ct., rule 3.1320, subd. (g).)

A. PRELIMINARY MATTERS

Defendant Auberge Resorts LLC (Auberge) demurs, pursuant to California Code of Civil Procedure, section 430.10, subdivision (c), (Section 430.10(c)), to Plaintiff Maudie Pollastrini's First Amended Complaint (FAC) on grounds that there is another action pending between the same parties on the same cause of action.

Auberge's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the subject matters of the request, but not for the truth of matters set forth therein.

B. PROCEDURAL HISTORY

Plaintiff Maudie Pollastrini commenced the instant action on August 15, 2024, by filing a Complaint asserting claims under the Private Attorneys General Act (PAGA) against SRGA Resort LP (SRGA) and Auberge. Ms. Pollastrini asserted her claims against the "Defendants" collectively. (See, e.g., Complaint at ¶ 6 ["Defendants and/or DOES employed Plaintiff and the aggrieved employees to staff and maintain Defendants' and/or DOES' hotels, restaurants, and resorts in the State of California"].) On October 30, 2024, Auberge and SRGA filed a joint Answer to the Complaint. On October 13, 2025, the parties filed a stipulation that provided, in part, that "Plaintiff has agreed to dismiss Defendant AUBERGE RESORTS LLC without prejudice based on the representations from both Defendants, including Amy Brandt, Chief Financial Officer for Auberge Resorts, that Plaintiff was employed by Defendant SRGA

RESORT LP and not Defendant AUBERGE RESORTS LLC . . .” Based on that stipulation, the Court dismissed the action against Auberge by order of October 13, 2025.

On October 24, 2025, Jessica Fernandez, a third-party to the instant action, commenced the action captioned *Jessica Fernandez v. SRGA Resort LP, et al.*, and bearing Napa County Superior Court Case No. 25CV002248 (*Fernandez v. SRGA*), by filing a Complaint asserting claims against SRGA and Auberge for violation of PAGA.

On May 5, 2026, Ms. Pollastrini, with leave of the Court, filed a First Amended Complaint (FAC) in the instant action reasserting her claims against Auberge. The allegations and prayers for relief in the FAC are identical with those in the Complaint. (See, *e.g.*, Exh. 1 to Stipulation Permitting Plaintiff to Leave to File a First Amended Class Action Complaint filed April 29, 2026.)

C. LEGAL BACKGROUND

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on . . . grounds [that] . . . [t]here is another action pending between the same parties on the same cause of action.” (§ 430.10(c).) This ground is also known as the “statutory plea of abatement.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788 (*Plant Insulation*).) It requires “absolute identity of parties, causes of action [and] remedies sought in the initial and subsequent actions.” (*Ibid.*)

While Section 430.10(c) was an attempt to codify the common law plea in abatement, pursuant to caselaw, the common law plea survives as the rule of exclusive concurrent jurisdiction. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788 [“Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist.”].) Namely, the common law rule of exclusive concurrent jurisdiction does not require identical parties or causes of action. (See *ibid.*) The common law rule of exclusive concurrent jurisdiction only requires that “the court exercising original jurisdiction has the power to bring before it all the necessary parties.” (*Ibid.*)

D. LEGAL ANALYSIS

Auberge concedes through its Memorandum that the instant action and *Fernandez v. SRGA* do not involve identical claims. (See Support Memo at 5:26-6:17, 7:16-21.) As such, the two actions do not satisfy the requirements of Section 430.10(c). (See *Plant Insulation*, *supra*, 224 Cal.App.3d at 788 [application of statutory abatement plea in abatement requires “absolute identity of parties, causes of action [and] remedies sought in the initial and subsequent actions”].)

Through its Support Memo, Auberge cites to *Plant Insulation*, and then asserts that “under the common law rule, the court may sustain a demurrer and abate a duplicative later-filed action, even where the parties in the later-filed action are not identical to those in the original action.” (Support Memo at 3:23-4:5.)

However, neither Auberge's Notice of Demurrer nor its Demurrer include "the common law rule of exclusive concurrent jurisdiction" as a ground for the relief sought, in violation of Rules of Court, rule 3.1110(a) and section 1010. The Court generally cannot grant different relief, or relief on *different grounds*, than that stated in the notice of motion. (See *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.)

Moreover, Auberge's argument in support of common law abatement depends on a finding that the instant action was filed *after Fernandez v. SRGA*. As noted above, it was not.

Auberge argues that the claims against *it* in the instant action do not relate back to the filing of the original complaint pursuant to the holding in *Troche v. Daley* (1990) 217 Ca.App.3d 403. That opinion holds that an amended complaint renaming a defendant who was originally named, but dismissed without prejudice, does not "relate[] back to [the date of the] filing of the original complaint *for purposes of the statute of limitations*." (*Id.* at 412. Italics added.)

The statute of limitations is not at issue here. Thus, the holding in *Troche v. Daley* does not directly apply to the instant circumstances. The Court declines to apply it by analogy.

The PAGA claims asserted through the instant action are based on Ms. Pollastrini's, and similarly situated employees', employment with SRGA and/or Auberge. The allegations of the FAC are that SRGA and Auberge are joint or co- employers, as opposed to allegations of separate employment. Thus, the PAGA claims at issue in the instant litigation were never dismissed. The fact that Plaintiff dismissed Auberge, based on representations by its agents that it was not an employer of the subject population, does not, in the Court's analysis, support a conclusion that the instant action is the later filed of the two actions for purposes of applying the common law rule of exclusive jurisdiction.

Finally, Auberge ignores that the common law rule applies "when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation" and "is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits." (*Plant Insulation Co., supra*, 224 Cal.App.3d at 786-87.) Here, both matters are pending before the same court.

Based on the foregoing, the demurrer is OVERRULED.

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Brandon Roth v. Karma Lounge, LLC et al

25CV000801

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to

immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.